

known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

The Cross-Complaint is bereft of allegations as to how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The allegations of the Cross-Complaint are cursory at best. Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

2. 9:00 AM CASE NUMBER: C23-03214
CASE NAME: ROBERT BRADFORD VS. KEITH STONE
***HEARING ON MOTION IN RE: LIMITED OPPOSITION TO DISCOVERY ORDER NO. 3**
FILED BY: K. B. STONE DIAMOND CORPORATION
TENTATIVE RULING:

Granted. Plaintiffs are not permitted to seek discovery into unrelated business entities and personal financial matters of the Stones, other than the flow of money between Defendants K.B. Stone Diamond Corporation and Happy Valley Estates, LLC to the Stones. The order is made without prejudice if discovery reveals cash flowing between one of the relevant entities and an unrelated business entity and/or personal finances.

3. 9:00 AM CASE NUMBER: C24-03509
CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's Complaint is **sustained with leave to amend**. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff AJ Jackson, a minor, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students. (Complaint, ¶ 3.) Plaintiff alleges he was under the custody, control, and care of District employees at the time and that those employees "failed [to] take appropriate action" in supervising and protecting him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable the negligence of its employees pursuant to Government Code section 815.2. (*Id.* ¶¶ 14-18.)

Plaintiff alleges that a government claim "was served on Antioch Unified School District pursuant to Government Code section 911.2 and has not been rejected." (*Id.* ¶¶ 8-9.)